

1.	25CV0119	THEOPOLIS WILLIAMS VS. UBER TECHNOLOGIES, INC. ET AL
MOTION TO COMPEL		

On April 20, 2026, Plaintiff filed the following two motions: 1) Motion to Compel Responses to Form Interrogatories, Set One; and 2) Motion to Compel Responses to Requests for Production, Set One.

On June 12, 2026, the Court found the Parties' meet and confer efforts inadequate. The Court ordered the Parties to further meet and confer and file a joint status report by July 24, 2026 outlining which, if any, items remain in dispute, and why.

The Parties provided the joint status report and have asserted that they were unable to resolve the discovery requests at issue. Plaintiff asserts all requests remain in dispute because, although some documents were received from Defendant's counsel, verified responses have not been provided for the Responses to Requests for Production and no verified or substantive responses have been provided for the Form Interrogatories. Defendant's counsel attests that she has been unable to contact Defendant Nunez Barajas ("Defendant") to verify responses or collect additional information, and she has produced the documents she has in her possession.

Motions to Compel – Request for Production and Form Interrogatories

Plaintiff argues that for all 68 Requests for Production, Defendant served the following objection and did not produce any documents:

Responding Party objects to this request on the grounds that it is vague, ambiguous, undefined, overbroad and burdensome and is so overly broad that it seeks information that is not relevant to the subject matter of this lawsuit and therefore, is not reasonably calculated to lead to the discovery of admissible evidence. As phrased the request potentially seeks to invade the Attorney-Client Privilege, it potentially violates the Attorney Work-Product Doctrine, and it calls for the premature disclosure of expert witness information, opinions and conclusions in violation of the Code of Civil Procedure Section 2034.010 et seq. Without waiving the said objections and subject thereto, Responding Party will respond at a later time.

Plaintiff further argues that the responses to every Form Interrogatory consisted of the identical response and did not provide any substantive answer nor verification: "Responding Party will respond at a later time."

Defendant's counsel does not oppose Plaintiff's motion to compel substantive discovery responses. Defendant's counsel has been unable to locate Defendant and requests more time to locate him so that substantive responses may be provided. Additionally, Defendant's counsel requests the Court deny Plaintiff's request that Defendant's objections be deemed waived.

The Court finds that each response to the Request for Production and Form Interrogatories is not code compliant and accordingly tantamount to no response due to lack of verification. *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [253 Cal.Rptr. 762, 764]. The Court grants Plaintiff's Motion to Compel Responses to Requests for Production of Documents, Set One and Form Interrogatories, Set One, in the entirety.

Code of Civil Procedure §§ 2031.300 and 2030.290 provide that a party waives any objection to the demand for production of documents or form interrogatories if they fail to serve a timely response. However, where a party timely raises unverified objections to a discovery demand, they do not waive its legal objections to the production request. *Blue Ridge Ins. Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 345 [248 Cal.Rptr. 346, 350], modified (July 19, 1988).

As Defendant's counsel served timely objections to the Request for Production, Defendant's objections are preserved. However, as no objections were made in response to the Form Interrogatories, the Court grants Plaintiff's requests to deem Defendant's objections waived as to the Form Interrogatories.

Sanctions

Plaintiff requests sanctions in the amount of \$1,560 for each motion, totaling \$3,120 against Defendant and Defendant's counsel, jointly and severally.

Defendant's counsel asserts that as she does not oppose Plaintiff's motion, sanctions are not appropriate. Should the Court determine sanctions are appropriate, Defendant's counsel requests the Court refrain from sanctioning Defendant's counsel as she has been unable to locate Defendant and therefore unable to serve substantive responses.

Code of Civil Procedure § 2031.310(h) provides: Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Code of Civil Procedure § 2030.300(d) provides: The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Code of Civil Procedure § 2031.300(c) provides: If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey the order compelling a response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).

Code of Civil Procedure § 2030.290(c) provides: If a party to whom interrogatories are directed fails to serve a timely response, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Code of Civil Procedure § 2023.010 defines “misuse of the discovery process” to include “making, without substantial justification, an unmeritorious objection to discovery”; “failing to respond or to submit to an authorized method of discovery”; “making, without substantial justification, an unmeritorious objection to discovery”; “making an evasive response to discovery.”

Code of Civil Procedure § 2023.030 authorizes the Court to impose a monetary sanction against parties engaged in misuse of the discovery process, to pay the reasonable expenses including attorney’s fees, incurred by anyone as a result of that conduct.

The Court finds that Defendant’s failure to respond to Plaintiff’s Request for Production and Form Interrogatories a misuse of the discovery process. Plaintiff’s request for sanctions in the amount of \$3,120.00 is granted against Defendant. Plaintiff’s request for sanctions against Defendant’s counsel is denied.

TENTATIVE RULING #1:

PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION AND FORM INTERROGATORIES IS GRANTED. DEFENDANT IS ORDERED TO SERVE VERIFIED, CODE-COMPLIANT RESPONSES WITHIN 10 DAYS OF THE COURT’S ORDER.

PLAINTIFF'S REQUEST ALL OBJECTIONS BE DEEMED WAIVED TO THE REQUEST FOR PRODUCTION IS DENIED. PLAINTIFF'S REQUEST ALL OBJECTIONS DEEMED WAIVED TO THE FORM INTERROGATORIES IS GRANTED.

PLAINTIFF'S REQUEST FOR SANCTIONS IN THE AMOUNT OF \$3,120.00 IS GRANTED AGAINST DEFENDANT. PLAINTIFF'S REQUEST FOR SANCTIONS AGAINST DEFENDANT'S COUNSEL IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.